

The Indo-Tibetan Border Police Force, Judge Attorney General (Additional Deputy Inspector General) Additional Attorney General (Commandant) Deputy Judge Attorney General (Deputy Commandant) And Attorney (Assistant Commandant) Recruitment And Conditions Of Service Rules, 1999

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The Indo-Tibetan Border Police Force, Judge Attorney General (Additional Deputy Inspector General) Additional Attorney General (Commandant) Deputy Judge Attorney General (Deputy Commandant) And Attorney (Assistant Commandant) Recruitment And Conditions Of Service Rules, 1999

UNION OF INDIA

India

The Indo-Tibetan Border Police Force, Judge Attorney General (Additional Deputy Inspector General) Additional Attorney General (Commandant) Deputy Judge Attorney General (Deputy Commandant) And Attorney (Assistant Commandant) Recruitment And Conditions Of Service Rules, 1999

Rule

THE-INDO-TIBETAN-BORDER-POLICE-FORCE-JUDGE-ATTORNEY-GENERAL-ADDITIONAL-DEPUTY-INSPECTOR-GENERAL-ADDITIONAL-ATTORNEY-GENERAL-COMMANDANT-DEPUTY-JUDGE-ATTORNEY-GENERAL-DEPUTY-COMMANDANT-AND-ATTORNEY-ASSISTANT-COMMANDANT-RECRUITMENT-AND-CONDITIONS-OF-SERVICE-RULES-1999 of 1999

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The Indo-Tibetan Border Police Force, Judge Attorney General (Additional Deputy Inspector General) Additional Attorney General (Commandant) Deputy Judge Attorney General (Deputy Commandant) And Attorney (Assistant Commandant) Recruitment And Conditions Of Service Rules, 1999

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(i), dated 24th September, 1999(w.e.f. 14th September, 1999)

1957.

G.S.R. 636 (E), dated 14th September, 1999. - In exercise of the powers conferred by such section (1) read with Cl. (p) of sub-Sec. 156 of the Indo Tibetan Border Police Force Act, 1992 (35 of 1992), the Central Government hereby makes the following rules in the Indo Tibetan Border Police Force, namely.

1.

Short title and commencement.

(1)

These rules may be called the Indo-Tibetan Border Police Force, Judge Attorney General (Additional Deputy Inspector General), Additional Judge Attorney General (Commandant), Deputy Judge Attorney General (Deputy Commandant) and Judge Attorney (Assistant Commandant) Recruitment and conditions of Service Rules, 1999.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Number of posts classification and scale of pay.

- The number of the said posts, their classification and the scales of pay attached thereto shall be as specified in columns (2) to (4) of the Schedule annexed to these rules.

3.

Method of recruitment, age limit and other qualifications.

- The method of recruitment to the said posts, age-limit, qualifications and other matters relating thereto shall be as specified in columns (5) to (14) of the said Schedule.

4.

General.

-(i) Service rendered as Judge Attorney General (Additional Deputy Inspector General), Additional Judge Attorney General (Commandant), Deputy Judge Attorney General (Deputy Commandant) and Judge Attorney (Assistant Commandant) shall be deemed to be judicial service and shall reckon as such for all purpose.

5.

Physical Fitness.

- Physical fitness as laid down for medical category SHAPE-I F is essential for appointment/promotion of any person.

6.

Seniority.

- Seniority of Judge Attorney General (Additional Deputy Inspector General), Additional Judge Attorney General (Commandant), Deputy Judge Attorney General (Deputy Commandant) and Judge Attorney (Assistant Commandant) shall be determined in accordance with the following principles namely :

(i)

an officer appointed in a substantive capacity shall be senior to an officer appointed in an officiating capacity.

(ii)

seniority of officers appointed to any post in a substantive capacity shall be determined in accordance with the date of appointment to that post in a substantive capacity and where two or more officers are appointed in a substantive capacity on the same date, their seniority shall be determined in accordance with their seniority while holding such posts in an officiating capacity, and

(iii)

seniority of officers appointed to any post in an officiating capacity shall be determined in accordance with the order of

selection for appointment to the posts.

7.

Other conditions of Service.

- The conditions of service of the Judge Attorney General (Additional Deputy Inspector General), Additional Judge Attorney General (Commandant), Deputy Judge Attorney General (Deputy Commandant) and Judge Attorney (Assistant Commandant) in respect of matters for which no provision or insufficient provision has been made under these rules, shall, unless the Central Government by an order in writing otherwise directs, be the same as are applicable from time to time to other officers of the Indo-Tibetan Border Police Force holding the corresponding ranks or status.

8.

Disqualification.

- No person,

(a)

who has entered into or contracted a marriage with a person having a spouse living, or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to any of the said posts.

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing-exempt any person from the operation of this rule.

9.

Initial constitution

-

(i)

Personnel holding the posts specified in the schedule annexed herein, immediately before commencement of these Rules on the regular basis shall be deemed to have been appointed in accordance with the provisions of these rules.

(ii)

The regular continuous service of personnel referred in sub-rule (1) in the respective grades immediately before commencement of these rules shall count for the purpose of probation period, qualifying service for promotion, confirmation and pension in the service.

10.

Power to Relax. - Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order is of the reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category or persons.

11.

Saving.

- Nothing in these rules shall affect reservations, relaxation of age-limit and other concessions required to be provided for the Schedule Castes, the Scheduled Tribes, Other Backward Classes, Ex-servicemen and other special categories of persons in accordance with the orders issued by the Central Government from time to time in this regard.

Schedule

Name

of the Post

Number

of Posts

Classification

Scale

of pay

Whether

by selection-cum-seniority or selection by merit

Whether

benefit of added years of service admissible

under

rule 30 of the Central Civil Services (Pension)

Rules,

1972.

Age

limit for direct recruits.

1

2

3

4

5

6

7

1.

Judge Attorney General (Additional Deputy Inspector General)

1*

(1999)

*Subject

to variation

dependent

on workload.

General

Central Service Group 'A', Gazetted (Non-Ministerial).

Rs.

14,300-400 -18,300/-Plus Rs.400/- .Special Allowance

Selection

by merit

Not

applicable.

Not

applicable.

Educational

and other qualifications required for direct recruits.

Whether

age and educational qualifications prescribed for direct recruits

will apply in the case of promotees.

Period

of probation, if any.

Method

of recruitment: whether by direct recruitment or by promotion or

by deputation/absorption and percentage of the posts to be

filled by various methods

8

9

10

11

Not

applicable

Not

applicable

Not

applicable

By

promotion failing which by deputation/failing both by re-employment.

In

case of recruitment by promotion/ deputation/ absorption, grade from which promotion/ deputation/ absorption to be made.

12

ByPromotion:

Bypromotion of an officer who is

or has been an Additional Judge Attorney General (Commandant) of the Force with[two years]

[Substituted by Notification No. G.S.R. 799(E), dated 23.10.2001 (w.e.f. 14.9.1999)]

regular service in the grade and

eighteen years of Group 'A'service

in the Force having eighteen years of experience in dealing with legal matters/ court cases and being in Medical category SHAPE-I.

ByDeputation:

By

deputation of a person who :-

(i)is or has been an officer of the

rank of Colonel with three years service in the grade in the

Department of the Judge Advocate General in Army /Navy/AirForce;

(ii)is or has a member of the State

Judicial Service for a period of not less than eighteen years; or

(iii)from amongst Central/State

Government officer of the Legal Department who;

(a)is or has been a Deputy Legal

Advisor or equivalent in the pay scale of Rs.12,000-375-16,500 having eight years

of regular service in the grade with eighteen years in dealing

with legal matters/ court cases; or.

(b)isor

has been an Additional Legal Advisor or equivalent in the pay

scale of Rs. 14,300-400-18,300 having three years of regular

service in the grade with eighteen years of experience in dealing

with legal matters/court cases.

Byre-employment:

By

re-employment of person who is or has been an officer of the rank

of Colonel with three years of service in the grade in the

Department of Judge Advocate General in Army /Navy/Air Force.

Note.- Period of deputation including of deputation another Ex-Cadre

post held immediately proceeding of this appointment in the same

or other organisation/ department of Central Government shall

ordinarily no exceed three years.

The

maximum age limit for eligibility for deputation shall be fifty

six years on the date of receipt of application.

Ifa Departmental Promotion

Commrttee exists what is its composition.

Circumstancesillwhich

Onion Public service Commissionisto be consulted in making

recruitment.

13

14

.Group'A'Departmental Promotion Committee

consisting of :-

Exempted

from the purview of the Omon Public Service Commission

consultation

1.

Director General, Indo-Tibetan Border Police Force.

Chairman

2.

Joint Secretary,Ministryof

Home Affairs.

Member

3.

Inspector General, Indo-Tibetan Border Police Force.

Member

4.Inspector General,Central Reserve Police Force or any

Central Police Organisation.

Member

1

2

3

4

5

6

7

2.

Additional Judge Attorney General (Commandant)

01*

(1999)

*Subject

to variation dependent on workload

General

Central Service Group'A',Gazetted

(Non-Ministerial).

Rs.

14,300-400-18,300/-

Selection

by merit

Not

applicable

Not

applicable

8

9

10

11

Not

applicable

Not
applicable

Not
applicable

By
promotion failing which by deputation/ failing both by the
re-employment

12

By
Promotion:

By
promotion of an officer who is or has been a Deputy Judge
Attorney Otmeral (Deputy Commandant) Of the Force with[six years
service in the grade and fifteen years of Group 'A' service in the Force having fifteen
years experience in dealing with legal matters/ court cases]
[Substituted by Notification No. G.S.R. 799(E), dated 23.10.2001 (w.e.f. 14.9.1999)]
and being in Medical
category SHAPE-I.

By
Deputation:

By
deputation of a person who:-
(i)is or has been an officer of the rank of Colonel or
equivalent in the Department of the Judge Advocate General in Army
/Navy/Air Force;

(ii)is or has a member of the State
Judicial Service for a period of not less than fifteen years or;

(iii)for amongst Central/State
Government officers of the Legal Department who;

(a)is or has been an Assistant
Legal Advisor or equivalent in the pay scale of Rs.
10,000-325-15,200 having nine years
of regular service in the grade with eighteen years of experience
in dealing with legal matters/court cases; or

(b)is or has been a Deputy Legal
Advisor or equivalent in the pay scale of Rs.
12,000-375-16,500 having five years
of regular service in the grade with eighteen years of experience
in dealing with legal matters/ court cases.

(c)
is or has been an Additional Legal Advisor or equivalent in the
pay scale of Rs. 14,300-400-18,300 having fifteen years of experience
in dealing with legal matters/ court cases.

(iv)From amongst the Prosecution
Counsel in the
Central/State Government having fifteen years of experience in dealing with
legal matters/ court and has held the post of Superintendent of
Police or equivalent in the pay scale of Rs. 10,000-325-15,200 for
nine years.

By re-employment:

By

re-employment of person who is or has been an officer of the rank of Colonel with three years of service in the grade in the Department of Judge Advocate General in Army /Navy/Air Force.

Note.-

Period of deputation including of deputation in another Ex-Cadre post held immediately preceding of this appointment in the same or other organisation/ department of Central Government shall ordinarily not exceed three years.

The maximum age limit for eligibility for deputation shall be fifty six years on the date of receipt of application.

13

14

Group

'A' Departmental Promotion Committee consisting of:

Exempted

from the purview of the Union Public Service Commission consultation

1. Director General, Indo-Tibetan Border Police Force.

Chairman

2.

Inspector General, Indo-Tibetan Border Police Force.

Member

3.

Director/Deputy Secretary, Ministry of Home Affairs.

Member

4.

Deputy Inspector General/Chief Administrative Officer, Indo-Tibetan Border Police Force.

Member

5.

Judge Attorney General, Indo-Tibetan Border Police Force

Member

1

2

3

4

5

6

7

3.

Deputy Judge Attorney General (Deputy Commandant)

02*

(1999)

*Subject to variation

dependent

on workload.

General

Central Service Group 'A', Gazetted, .

(Non-Ministerial).

Rs.
10000-325-15,200/-
Selection
by merit
Not
applicable
Not
applicable
8
9
10
11
Not
applicable
Not
applicable
Not
applicable
By
promotion failing which by deputation/failing both by
re-employment.
12
By
Promotion:
By
promotion of an officer who is or has been a Judge Attorney
(Assistant Commandant) of the Force with six years regular
service in the grade and being in Medical category SHAPE-I.
By
Deputation:
By
deputation of a person who :-
(i)is or has been an officer of the
rank of Major or equivalent in the Department of the Judge
Advocate General in Army /Navy/Air Force; or
(li)is or has a member of the State
Judicial Service for a period of not less than six years; or
(iii).is
or has been an officer having degree in law of a recognised
University or equivalent and holding Group 'A' post in the pay
scaleRs.10,000-325-15,200 in the law of a
recognised University or equivalent and holding Group 'A' post in the pay scale ofRs.10,000-325-15,200 in the legal
department of Central or State Government; or
(iv)is or has been an officer who
has been a prosecution counsel and holding, in a Group 'A' post
in the pay scale ofRs.8,000-275-13,500 in the
Central/State Government for not less than six years; or
(v)is or has been an officer having
degree in law of a recognised University or equivalent and
holding a Group 'A' post in the pay scale ofRs.8,000-275-13,500 in the Central
Government/State Government for six years and having experience

in dealing with legal matters/court cases for a period not less than six years ;or

(vi)is or has been an officer having degree in law of a recognised University or equivalent and has been holding the post of Assistant Commandant or equivalent in the pay scale ofRs.8,000-27.5-13,500 in the Force or any other Armed Force of the Union or State Police for six years with five years experience in dealing with legal matters/court cases.

By
re-employment:-

By
re-employment of person who is or has been an officer of the rank of Major with three years of service in the-gradeinthe Department of Judge Advocate General in Army /Navy/Air Force.

Note.- Period of deputation including of deputation in another Ex-Cadre post held immediately proceeding of this appointment in the same or other organisation/ department of Central Government shall ordinarily not exceed three years. The maximum age limit for eligibility for deputation shall be fifty six years on the date of receipt of application.

13

14

Group

'A' Departmental Promotion Committee consisting of :-

Exempted

from the purview of the Union Public Service Commission consultation.

1.Director General, Indo-Tibetan
Border Police Force.

Chairman

2.

Inspector General, Indo-Tibetan Border Police Force
Member

3.

Director1Deputy

Secretary, Ministry of Home Affairs.

Member

4.Deputy Inspector General/Chief

Administrative Officer, Indo-Tibetan Border Police Force.

Member

5.

Judge Attorney General, Indo-Tibetan Border Police Force.

Member

1

2

3

4

5

6

7

4.

Judge Attorney (Assistant Commandant)

03*

(1999)

*Subject to variation dependent on workload.

General

Central Service Group 'A', Gazetted,.

(Non-Ministerial).

Rs.8000-275-13,500 /-

Selection

by merit

Not

applicable

Not

applicable

8

9

10

11

Not

applicable

Not

applicable

Not

applicable

By

promotion failing which by deputation/ failing both by re-employment.

12

By

Deputation/Absorption:

By

deputation/absorption of a person who

By

promotion failing which by deputation/ failing both by re-employment..

(i)is or has been an officer of

Central/State Government holding the analogous post and is having the degree in law of a recognised University or equivalent; or

(ii)is or has been an officer

holding the post of Assistant Commandant or equivalent

in the pay scale of Rs. 8,000-275-13,500 in the Central Police

Organisations having degree in law of a recognised University or equivalent; or

(iii)is or has been an officer of the

rank of Captain or equivalent in the department of the Judge

Advocate General in Army/Navy /

AirForce.

By

re-employment:

By

re-employment of person who is or has been an officer of the rank of Captain in the Department of Judge Advocate General in Army /Navy/Air Force.

Note.- Period of deputation including of deputatign, another Ex-Cadre post held immediately proceeding of this appointment in the same or other organisation/ department of Central Government shall ordinarily not exceed three years.The maximum age limit for eligibility for deputation shall be fifty six years on the date of receipt of application).

13

14

Group

'A'Departmental

Promotion Committee for confirmation consisting of:

Exempted

from the purview

of the Union Public Service Commission consultation.

1.Director General, Indo-Tibetan

Border Police Force.

Chairman

2.

Inspector General, Indo-Tibetan Border Police Force.

Member

3.Director/Deputy Secretary. Ministry

of Home Affairs.

Member

4.Deputy Inspector General/Chief

Administrative Officer, Indo-Tibetan Border Police Force.

Member

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